



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Athen Mores, Planner I
Subject: PUDC-24-202 / Edgar Subdivision / Final Plat
Date: December 2, 2024

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral December 9, 2024
- Public Services Committee December 17, 2024
- Final consideration December 23, 2024

Planning Commission Recommendation:

The Planning Commission heard this item at their December 2, 2024 meeting and voted to recommend the Governing Body approve this application with staff recommended condition:

1. Prior to recording:
 - a. Minor technical corrections be made.

The Planning Commission Staff report is attached.

Attachments:

1. Resolution
2. Final Map
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR EDGAR SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF SULLIVAN ST AND ADJACENT TO PANORAMA DRIVE)."

WHEREAS, Daniel Edgar has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Daniel Edgar the owner of the above-described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Edgar Subdivision, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

[illegible]STATE OF WYOMING)

COUNTY OF _____)

MY COMMISSION EXPIRES

CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.



Mayor - Patrick Collins
Kristina Jones-City Clerk

□	FOUND ALUMINUM CAP
△	CITY OF CHEYENNE CONTROL MONUMENT
●	2" ALUMINUM CAP SET ON
	36" x 24" BRASS STAMPED IN PLU 1314
_____	PROPERTY LINE
-----	BASEMENT LINES
-----	BASEMENT CENTERLINE
-----	ADJACENT LOT LINES
-----	RIGHT-OF-WAY LINE
()	RECORD DATA

IT IS THE INTENT OF THIS REPLAT TO VACATE THE 8' UTILITY EASEMENT ALONG THE NORTH AND WEST LINES OF PANORAMA DRIVE AND THE DRAINAGE DETENTION AREA ORIGINALLY ESTABLISHED BY VIEW POINT NORTH, 2ND FLUNG.

1.1 DEFINES DRAINAGE EASEMENT ALONG PANORAMA DRIVE



Know what's below.
Call before you dig.



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CITY OF CHEYENNE PLANNING COMMISSION

December 2, 2024

STAFF REPORT

FILE: PUDC-24-202: Edgar Subdivision, Final Plat

REQUEST: A final Plat subdividing the property into 11 lots.

LOCATION: 5192 Panorama Drive, Cheyenne, Wyoming

APPLICANT: Brooke Bulgrin

OWNER: Daniel and Jeanne Edgar

ZONING: MR Medium Density Residential

FUTURE LAND USE: UR- Urban Residential

PROPOSED LOTS: 11 lots

TOTAL AREA: 2.73 Acres

CASE PLANNER: Athen Moers - Planner I



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the Edgar Subdivision Final Plat with staff's conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.3 Final Plat
- UDC Article 3 Impact Studies
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

With the original plat in 1995, the area within this plat was designated specifically for drainage. However, with the actual development of the property, the drainage plan was reconfigured. Due to these changes, only a small portion of the property was transferred to the City for drainage purposes (such transfer being common in that era) and the remainder of the property was sold off for development. The property was developed with one house, and the owner is now requesting subdivision of the remainder. The development requested is to final plat 11 single-unit residential lots on this site. The plat and the development of the property must meet all current applicable requirements, including site-specific drainage.

The preliminary plat was denied by the planning commission due to failure to meet review criteria 2 and 8. The applicant appealed the denial, and the City Council overturned the Planning Commission denial and approved the preliminary plat (with conditions). Approval of the preliminary plat allows the applicant to submit a final plat subject to final plat review criteria.

This application has submitted an Engineering Plan Review (EPR) to develop the property. In review of the engineering for the property, there are some concerns about drainage. These concerns will be addressed through the EPR process. The Engineering Department will not allow any development without the final approval of the EPR. Should any minor modification need to be made to the plat they can be address with an Administrative Plat. Such modifications are common on subdivisions through out the community.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of final plat, the Commission must make the following findings required in UDC 2.1.3.d a detailed analysis is below. The purpose of a final plat review is to ensure compliance with the approved preliminary plat and its conditions of approval.

- 1) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The layout of the plan is substantial with the approved preliminary plat laying out 11 single unit residential lots. The proposed project is located at 5192 Panorama Drive. No changes need to be made to the project property relating to the right of way streets.

The application **complies** with this review criterion.

2) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

The preliminary plat was approved on October 14, 2024, subject to the following conditions:

1. The following exceptions to are granted:
 - a. Exception to block size.
2. Prior to recording
 - a. Add owner name to the notary.

The application **complies** with this review criterion with conditions.

3) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

Transportation Network

This plat is occurring within an area of the community that has been previously developed. There is limited opportunity to modify the street network. The block this plat is occurring on is oversized however, due to topography and previous development there is no opportunity for this proposal to add a connection. The City Council approved an exception to block size with the preliminary plat approval.

Community Facilities and Fees

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc.), are exempt from fees. The acreage in the plat is 2.7 acres

Land Acquisition Fee	\$945.00
Infrastructure Fee	\$945.00
Total Land Acquisition & Infrastructure Fees	\$1890.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Residential Enhancement Fee \$400 per dwelling unit
Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Open Space Systems

Single family residential development under 10 acres is exempt from providing open space during the platting action.

Required Improvements and Engineering Specifications

Lot 41 may have issues getting water service depending on the location of the structure built on the lot. This plat otherwise appears to be able to provide all required utilities to the lots within this development.

Public Safety Fee

Public Safety Fees are required at the time of construction of any commercial building or residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion with conditions.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Ownership common lot.
2. Drainage.
3. Fulfillment of Preliminary Plat conditions.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.1.3.(d) for Final Plat approval. The Final Plat is consistent with the approved Preliminary Plat. Submittals to Staff have substantially addressed the conditions placed on the Preliminary Plat.

If planning commission is satisfied with the conditions recommended by Staff, Staff would recommend approval.

ALTERNATIVES:

1. Recommend approval of the project as submitted by the applicant. **(Staff Recommendation)**
2. Recommend that the application be approved with specific conditions or modifications, and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend that the application be denied based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the project until issues identified during the meeting can be resolved.

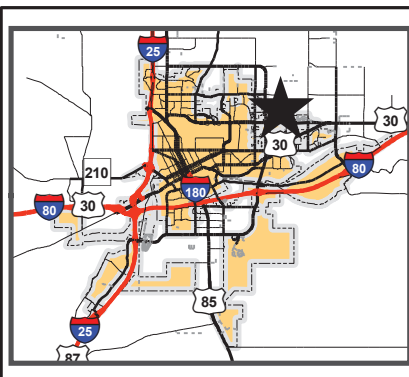
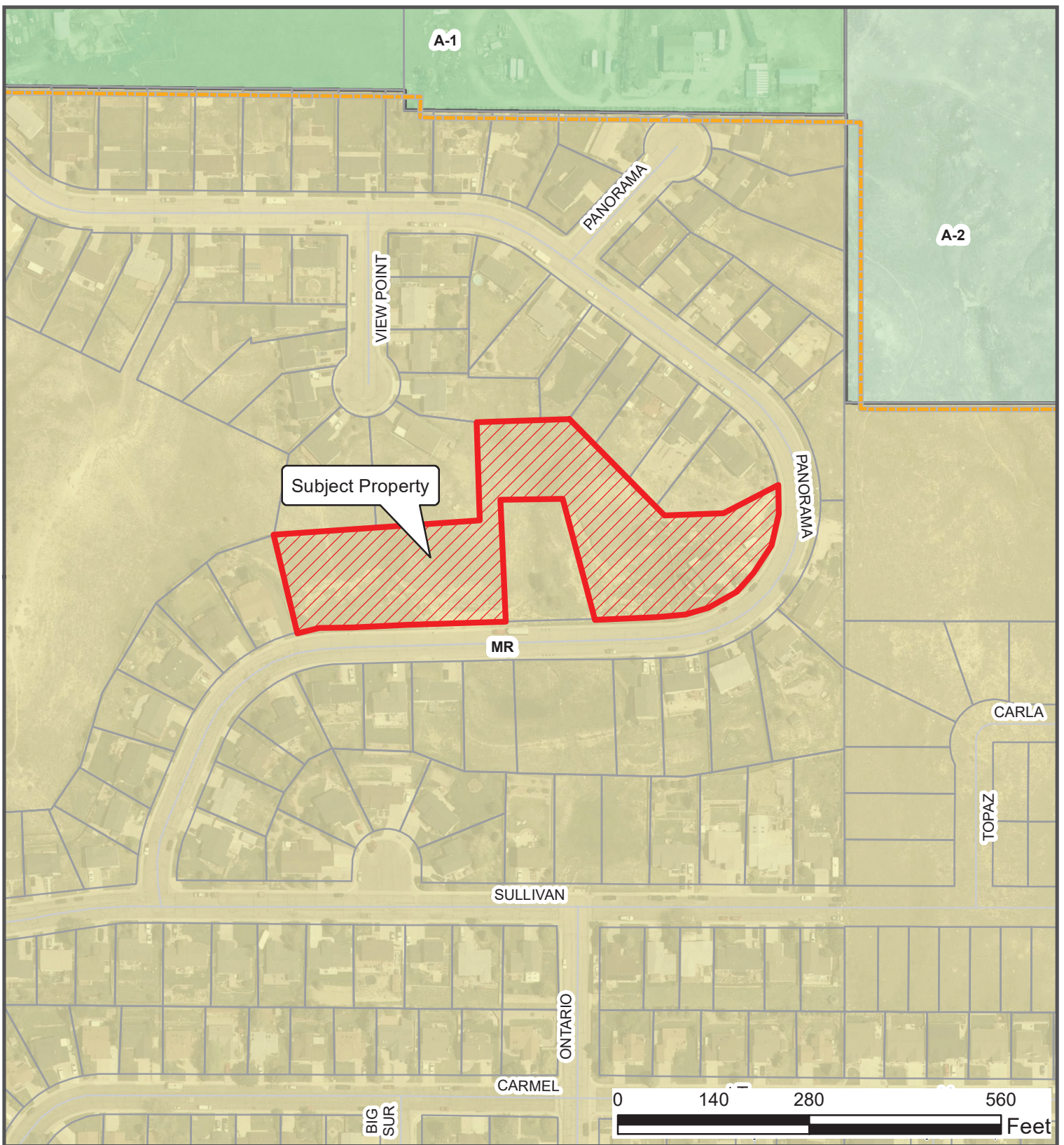
STAFF RECOMMENDATION:

Staff recommends that the Planning Commission recommend the Governing Body **approve** Edgar Subdivision Final Plat with the following conditions:

1. Prior to recording:
 - a) Minor technical corrections.

ATTACHMENTS:

1. Zoning
2. Future Land Use Map
3. Application
4. Final Plat

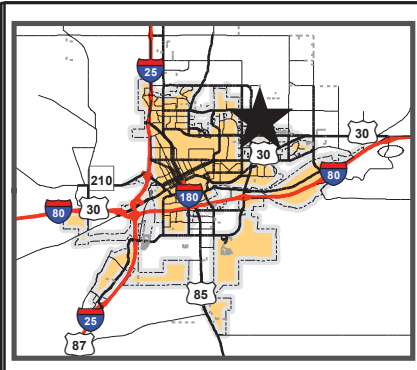
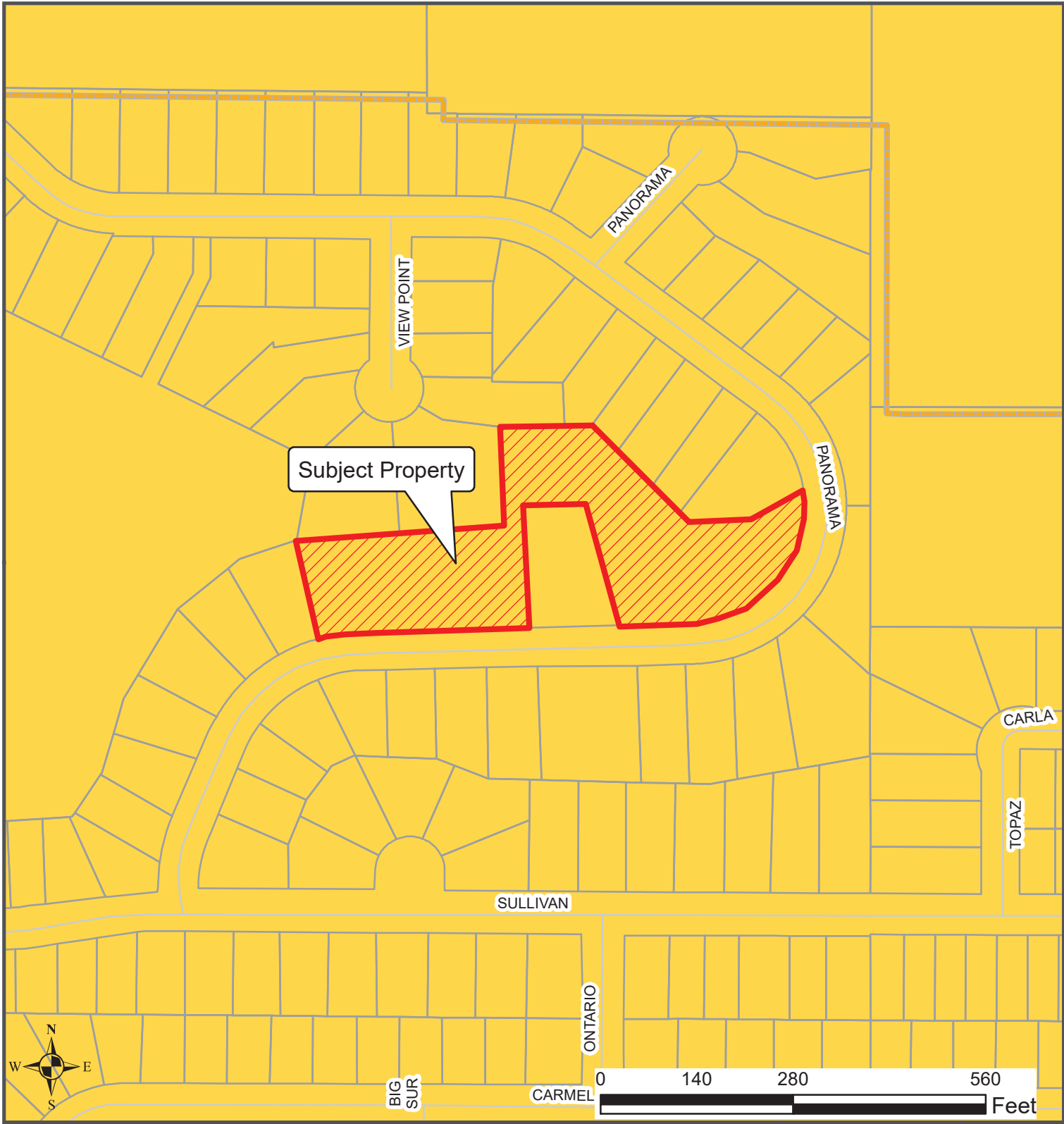


Attachment 1: Zoning Map PUDC-24-202

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-24-202

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Legend

- | | | |
|--------------------|------------------------------|---------------------------|
| City Limits | Agricultural/Rural | Industrial |
| Interstate | Rural Residential | Central Business District |
| Principal Arterial | Urban Transition Residential | Community Business |
| Minor Arterial | Urban Residential | Public and Quasi-Public |
| Major Collector | Mixed-Use Residential | Military/Federal |
| Minor Collector | Mixed-Use Commercial | Open Space and Parks |
| Local | Mixed-Use Employment | |
| Private | | |
| Platted not built | | |
| Ownership | | |



PUDC-24-202

Plat - Final

Status: Active

Submitted On: 10/18/2024

Primary Location

5192 PANORAMA DR
Cheyenne, WY 82009

Owner

EDGAR, DANIEL S ET UX
5192 PANORAMA DR
CHEYENNE, WY 82009

Applicant

 Brooke Bulgrin
 307-635-6827
 bbulgrin@inberg-miller.com
 350 Parsley Blvd
Cheyenne, WY 82007

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* 

Edgar Subdivision

Plat Title* 

Edgar Subdivision

Preliminary Plat Title*

Edgar Subdivision

Current Subdivision* 

View Point North 2nd Filing

Project area (acres)*

2.73

Proposed Lots* 

11

Pre-application Meeting Date

03/27/2024

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting  actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.*

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2).*



The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Brooke Bulgrin
Oct 18, 2024

[illegible]STATE OF WYOMING)

COUNTY OF _____)

_____, 2024 by Daniel S. Edgar & Jeanne M. Edgar, owners.

MY COMMISSION EXPIRES

INBERG-MILLER ENGINEERS
350 Parsley Boulevard
Cheyenne, Wyoming 82007
(307)635-6827
Drawn by TDF/MDH
Brookline L. Bullgrin, P.E.
Randall S. Stelzner, P.L.S.

DATE: 10/18/2024 24077-HE
FILE: 24077-HE Final Plat.dwg



LEGEND

11 DEFINES DRAINAGE EASEMENT ALONG PANORAMA DRIVE

